

26STLC03170 26STLC03170

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-23

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Case Number: 26STLC03170 Hearing Date: September 23, 2026 Dept: 25

HEARING DATE: Wed., September 23, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Omar

v. South Goodyear Investments Corporation

COMP. FILED: 05-11-26

CASE NUMBER: 26STLC03170

NOTICE: OK

PROCEEDINGS: MOTION

TO SET ASIDE DEFAULT

MOVING PARTY: Defendant South Goodyear Investments
Corporation

RESP. PARTY: Plaintiff Shalaby Omar

MOTION TO

SET ASIDE DEFAULT

(Code Civ. Proc., § 473(b))

TENTATIVE RULING:

The Court GRANTS

South Goodyear Investments Corporation's motion to set aside the default

entered against it. The July 22, 2026
default is hereby SET ASIDE AND VACATED.

The Court
DENIES Shalaby Omar's request for fees and costs.

South
Goodyear is to give notice.

SERVICE:

☒ Proof
of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct
Address (CCP §§ 1013, 1013a) OK

☒ 16/21
Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on August 24, 2026 ☐
Late ☐ None

REPLY: Filed
on August 28, 2026 ☐ Late ☐ None

ANALYSIS:

Shalaby Omar sued South Goodyear Investments
Corporation for violation of the Unruh Civil Rights Act. Omar obtained a default against South
Goodyear in July 2026. South Goodyear
now moves to have the default set aside under Code of Civil Procedure section
473, subdivision (b) because it was entered due to South Goodyear's mistake or
excusable neglect.

A motion pursuant to the
discretionary relief provision of Code of Civil Procedure section 473,
subdivision (b), must (1) be timely, (2) be accompanied by a proposed pleading,
and (3) demonstrate that the default was taken through the party's mistake,

inadvertence, surprise, or excusable neglect.

(Code Civ. Proc., § 473, subd. (b); Austin v. Los Angeles Unified School District (2016) 244 Cal.App.4th 918, 928.) Neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error. (Austin, at p. 929.)

South Goodyear's motion, filed August 18, 2026, satisfies each of those requirements. South Goodyear attaches a proposed answer to its motion. South Goodyear's general counsel, Gregson M. Perry, declares that he attempted to calendar the responsive-pleading deadline, made a calendaring error in calculating the deadline, and as a result no responsive pleading was timely filed. Perry further attests that he discovered the error six days after default was entered and immediately retained counsel to seek relief. Omar does not oppose setting aside the default but rather argues that Perry should be required to pay fees, which is discussed further below.

Given these facts, the Court GRANTS South Goodyear's request for relief under the discretionary provision of Code of Civil Procedure section 473, subdivision (b). (See Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 28 [Code of Civil Procedure section 473 is applied liberally where the party in default moves promptly and the party opposing the motion will not suffer prejudice].) The July 22, 2026 default is hereby SET ASIDE AND VACATED. South Goodyear must file the answer attached to its motion within 10 days.

Omar contends that because Perry is an attorney, he should pay legal fees and costs pursuant to Code of Civil Procedure section 473, subdivision (b). Omar misinterprets that section and South Goodyear's motion. Code of Civil Procedure section 473, subdivision (b) contains two distinct mechanisms: one for discretionary relief based on a party's mistake, inadvertence, surprise, or excusable neglect, and one for mandatory relief based on an attorney's mistake, inadvertence, surprise, or neglect. Only the mandatory provision requires fee-shifting. (Code Civ. Proc., § 473, subd. (b).)

But South Goodyear's motion is based on the discretionary

provision premised on its own calendaring error, not the error of its counsel of record in this matter, Erik E. Woodbury.

Default was entered before any attorney of record appeared, outside counsel was not retained until after default was entered, and the motion attributes the calendaring error to South Goodyear as the client rather than to Woodbury as counsel of record. The Court is granting relief based on section 473 (b)'s discretionary provision—as requested in South Goodyear's motion—and not on the statute's mandatory provision. The Court therefore DENIES Omar's request for fees and costs against Perry.

South Goodyear is to give notice.